

Note: This file and the list of settlements below were created with and verified by multiple AI tools. The content is meant to provide a snapshot of publicly reported pay-for-delay settlements.

Reverse-Settlement Terms

This section describes the terms of reverse settlements involving brand manufacturer and PIV filers. While there are many more settlements discussed/alleged publicly, I only list cases for which a cash or near-cash amount is disclosed in a primary document describing the original agreement (e.g. an FTC complaint or Commission opinion, a court opinion, a filing with the SEC, or a company press release). I also include URLs to sources that can be used to verify these settlement terms.

Settlements with cash transfers documented in a primary source

Drug	Brand → Generic	Original consideration	Entry	Source
Provigil (modafinil)	Cephalon → Teva	Royalties of up to \$125 million (Dec. 2005)	April 2012	FTC complaint ; FTC Commission opinion
Provigil (modafinil)	Cephalon → Ranbaxy	\$5 million patent licence, together with purchases of active ingredient at above-market prices that were not separately quantified (Dec. 2005)	April 2012	same
Provigil (modafinil)	Cephalon → Mylan	At least \$45 million (Jan. 2006)	April 2012	same
Provigil (modafinil)	Cephalon → Barr and Chemagis	At least \$45 million, comprising a \$1 million patent licence, a \$2 million payment toward litigation costs, and active-ingredient and development agreements (Feb. 2006)	April 2012	same
K-Dur 20	Schering-Plough → Upsher-Smith	\$60 million, characterised by the parties as consideration for a licence to Upsher-Smith's Niacor product, which the FTC alleged was pretextual (June 1997)	September 2001	FTC press release ; 11th Cir. opinion
K-Dur 20	Schering-Plough → ESI Lederle	\$15 million for the entry restriction plus \$15 million for a licence, \$30 million in total (1998)	Licensed January 2004; actual entry September 2001, accelerated by Upsher-Smith's launch	FTC press release
AndroGel	Solvay → Actavis (Watson)	Approximately \$19–30 million annually over nine years, \$170–270 million in total (Sept. 2006)	31 August 2015	FTC v. Actavis , 570 U.S. 136
AndroGel	Solvay → Par	\$60 million (Sept. 2006)	31 August 2015	same
AndroGel	Solvay → Paddock	\$12 million (Sept. 2006). Paddock's entry right was contingent on Watson not asserting its 180-day exclusivity	31 August 2015	same
Cardizem CD	Hoechst Marion Roussel → Andrx	\$89.83 million, paid quarterly at \$10 million from July 1998, including a final payment of \$50.7 million. Agreement executed September 1997	23 June 1999, after the Sixth Circuit held the agreement unlawful <i>per se</i>	6th Cir. opinion
Tamoxifen	Zeneca → Barr	\$21 million, together with a non-exclusive licence permitting Barr to resell Zeneca-manufactured tamoxifen. The licence was not valued (March 1993)	20 August 2002, on patent expiry	In re Tamoxifen Citrate Antitrust Litig. , 429 F.3d 370 (2d Cir.)
Niaspan	Kos (later Abbott) → Barr	\$5 million on signing (2005), \$45 million (2006) and \$37 million (2007), structured as manufacturing and supply fees. The \$87 million total is a lower bound; payments continued after 2007	20 September 2013	Consolidated amended complaint ; Kos 8-K

Drug	Brand → Generic	Original consideration	Entry	Source
Ovcon 35	Warner Chilcott (Galen) → Barr	\$1 million for an option plus \$19 million on its exercise, \$20 million in total (March 2004)	Licensed May 2009; actual entry October 2006, the restriction having been waived under regulatory pressure	FTC case 0410034
Cipro (ciprofloxacin)	Bayer → Barr, Rugby, Hoechst Marion Roussel and Watson	A lump sum of \$49.1 million followed by quarterly payments, \$398.1 million in total. This figure is Bayer's aggregate across four generic firms, not a single bilateral transfer.	December 2003	<i>In re Cipro Cases I & II</i>
BuSpar (buspirone)	Bristol-Myers Squibb → Schein/Danbury	\$72.5 million, paid in four yearly instalments between 1995 and 1998 (Dec. 1994)	March 2001	FTC complaint 1 ; FTC complaint 2
Hytrin (terazosin)	Abbott → Geneva	\$4.5 million per month. Approximately \$72 million was paid over roughly sixteen months before the agreement collapsed. The FTC's complaint notes this substantially exceeded the \$1–1.5 million monthly loss Abbott itself estimated Geneva would incur by staying off the market (April 1998)	13 August 1999, when Geneva launched and the agreement terminated	FTC press release ; Federal Register analysis
Hytrin (terazosin)	Abbott → Zenith	\$3 million on signing, \$3 million after three months, and \$6 million quarterly thereafter, to a scheduled maximum of approximately \$42 million through March 2000, reducible if another generic entered (March 1998)	1 March 2000 or earlier on specified triggers	11th Cir. opinion
Solodyn (minocycline)	Medicis → Impax	\$40 million on signing plus milestone payments of up to \$23 million (Nov. 2008)	26 November 2011	Medicis 8-K